

The Claremont City Council held a meeting on Wednesday, August 12, 2020, via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

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Members of the Council present were:

Ward I Councilor Andrew O'Hearne, Council Chambers, Councilors Sweetser and Stone

At-Large Councilor Abigail Kier, home, alone

At-Large Councilor Erica Sweetser, Council Chambers, Councilors Stone and O'Hearne

Assistant Mayor Allen Damren , home, alone

Mayor Charlene Lovett, home, alone

At-Large Councilor Debora Matteau, home, alone

At-Large Councilor Nicholas Koloski, Escape Factor, alone

Ward II Councilor James Contois, home, alone

Ward III Councilor Jonathan Stone, Council Chambers, Councilors O'Hearne and Sweetser

Also present:

Edward Morris, City Manager

AGENDA CHANGES

Councilor Koloski asked that Items A. Censure Discussion and B. Proposed Council Rule Changes under Old Business be moved to under New Business after Item K. Resolution 2021-7 Establish Capital Reserve for Construction, Reconstruction, or Acquisition of City-Owned Facilities as Specified in the CIP, because of their potentially negative nature. Councilors agreed.

Councilor O'Hearne asked to move I. Sweetwater Hydro PILOT Agreement – Public Hearing, J. Lower Valley PILOT Agreement – Public Hearing, and K. Resolution 2021-7 Establish Capital Reserve for Construction, Reconstruction, or Acquisition of City-Owned Facilities as Specified in the CIP – Public Hearing, under New Business. Because they were public hearings and were warned as being later in the evening, they were left on the schedule as posted. It was Councilor O'Hearne's hope that in the future public hearings would be scheduled earlier in the evening.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Damren and seconded by Councilor Contois to accept the minutes of the July 8, 2020, City Council meeting, as amended.

Councilor Koloski said on page 18, the minutes state he requested information from the Historic District Commission, but he had requested the information from the Conservation Commission.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

A motion was made by Councilor Kier and seconded by Councilor Matteau to accept the minutes of the July 22, 2020, City Council meeting.

Councilor Koloski asked how to address a letter of support he had received. Mayor Lovett said the Claremont Development Authority letter was the only one read into the record, that's why it was attached to the minutes.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

MAYOR'S NOTES

- Thank you to all who participated in the rededication of the Ronald McKenzie Memorial today. Many members of his family were there, including his sister and brother who are in their 80s.
 - Mr. Morris said Claremont Community Television (CCTV) recorded the event and it also went out on Facebook live.
- Mayor Lovett said that she and the City Manager attended a Mayor & City Manager virtual roundtable with Congresswoman Kuster, and Mayor Lovett will send out notes.
- August 29 the Rotary will hold an event to celebrate the 100th Anniversary of Women's Right to Vote. More information to come.

Councilor Koloski said the Claremont Firefighter's Association announced the 2020 Golf Tournament and the 2020 Fire Prevention Parade were cancelled due to COVID-19. Also, the November Turkey Raffle is cancelled.

CITY MANAGER'S REPORT

- **Mercantile Inspection Program** – The Mercantile Inspection Program (fire and building codes), which was discontinued many years ago is expected to be reimplemented early this fall.
- **Yearend Budget Update** – The City has ended FY 2020 in good condition, even with the COVID-19 pandemic changing the second half of the year. In spite of being closed from mid-March through most of the end of the fiscal year, the Claremont Savings Bank Community Center (CSBCC) ended the year with \$442,609 of taxpayer support. He thanked Parks and Recreation Director Mark Brislin and the rest of his Staff for their work to keep costs down during this time.

He thanked the rest of the City Staff for their efforts to minimize costs as well. Besides putting off a few projects, and not spending money that would have been spent if things were not shut down, employees have done a great job minimizing City costs throughout the COVID-19 pandemic. Even though FY 2020 is not completely closed out, it appears we will be placing just over \$1,000,000 into fund balance.

- **Washington and Bowen Street** – The delay in construction on the Washington and Bowen Street Intersection Project was caused by difficulty getting certain parts for the signal light being installed, which was caused by manufacturing slowdowns due to the COVID-19 pandemic. Construction has now resumed, and we look forward to the completion of the project.
- **SRF Loan for lead replacement** – The City applied for a \$2 million SRF Loan to replace lead lines throughout our water system. Of the 82 applicants, Claremont's

project was ranked 3rd, with 18 of the applications expected to be funded. The hearing to determine final funding is scheduled for August 6, 2020. Three reasons we ranked so high is that the City has completed an energy audit, implemented an asset management plan, and the work to be done is critical to infrastructure.

This loan will allow for removal of a majority of the City's 2" or smaller water lines, from 80 different streets, that have reached the end of their expected life. This loan does come with some forgiveness and State Aid Grants (SAG). The amount of forgiveness and State Aid will be determined based on our water rates and median income. This loan will expedite the "Get the Lead Out" project by 5 years. The City plans to start the engineering phase of the project this fall.

- **North and Main** - Preliminary Engineering for the North and Main Street Project is continuing, with NHDOT also working on the right-of-way work. NHDOT's share of the project is 80% and the City of Claremont's share is 20%. Total cost for the project is \$4,822,362.75, with the City's share being \$972,472.55. The City of Claremont had previously allocated a total of \$885,000 (\$785,000 in bond, and \$100,000 from 2011 budget) for the project. This leaves a gap of \$87,472.55. City Staff is working through funding options that will be coming to the Council for consideration in the future.

A public hearing for the project is scheduled for Thursday, August 20th. It was originally scheduled to be held at 6PM at the Community Center, but due to COVID, this may be changed to a virtual meeting. If that is the case, a public notice will be placed on both the NHDOT's and City of Claremont's web sites notifying the public of the meeting.

- **Covid-19 Update** – At the time this report was written, the State of New Hampshire has been trending up from the approximately 20+ cases of COVID-19 per day as reported at the last City Council meeting, to an average of just under 30 per day over the last week. Even with this increase, NH remains at a relatively low rate of infection. We currently have under 4 active cases in Claremont. We need to continue to keep good hand hygiene and sanitization efforts, maintain social distancing, and wear masks when in public, in order to help keep our numbers low and protect the health of the citizens of Claremont.

After the Governor made the announcement to keep testing centers open, we were notified that the testing center at the Claremont Middle School (CMS) would not close on July 31, 2020, as previously reported. Over the last week, testing at CMS has remained low.

- As of today, there are five active cases throughout Sullivan County. Today he received word that Saturday would be the last day for testing at CMS.

When asked if some of the money for lead removal could be used on Pleasant Street, Mr. Morris said he can look into it. We are not budgeting it into the bond request. He said the City will continue looking for funding.

Councilor O'Hearne expressed concern about a left turn at the Washington and Bowen Intersection Project, and its potential for an accident. Planning and Development Director Nancy Merrill will look to see what is in the design.

APPOINTMENT TO BOARDS AND COMMITTEES

Airport Advisory Board

A motion was made by Councilor Koloski and seconded by Councilor Kier to appoint Paul Dube to seat 3 of the Airport Advisory Board.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Fiske Free Library Board of Trustees

A motion was made by Councilor Koloski and seconded by Councilor Stone to appoint John Hurley to seat 1 of the Fiske Free Library Board of Trustees.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Frances J. Tolles Home Trustees

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to appoint Sherrie Curtis to seat 6 of the Frances J. Tolles Home Trustees.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

CITIZEN’S FORUM

No one spoke.

OLD BUSINESS

Pleasant Street Update

Mr. Morris said this is part of the continuing talk on the Pleasant Street Project and the bond initiative.

Brian Colburn, McFarland Johnson Engineer showed a PowerPoint presentation.

- Pleasant Street is a state highway
 - NHDOT needs to approve the new route
- Local Deliveries
 - Truck route
 - Trucks delivering into downtown
 - Could be loading zone for local deliveries, i.e. designate on-street spaces or remove parking spaces
 - Could designate times for deliveries
 - Could designate off street locations
- Glidden & Broad Streets
 - Roundabout, theoretically could work, take 2 lanes
 - Would take away driveways from Post Office
 - Not feasible
 - Light - bog down traffic on Broad Street
 - Peak afternoon hours

- Minimal amount of delay
- Truck Traffic on Broad Street in Front of Stevens High School
 - Traffic counts pre-COVID 19
 - Tractor trailers from 6 a.m.-11 a.m., every 5-6 minutes
 - New truck route will increase truck traffic into town
 - South bound
- Trees and Flowers
- Current Upkeep Costs
 - Underground utilities are aged
 - By replacing, those costs go away
 - Stormwater drain into sewer system; by separating, reduce demand on the sewer plant
 - Sidewalk & pavement is aged
 - Limit amount of repairs

Ms. Merrill said that McFarland Johnson engineering is 90% complete. The 10% that is not done is landscaping. Mr. Colburn said once the landscaping plan is done, they will get community input. Ms. Merrill pointed out how many chapters of the Master Plan that this plan addresses including Economic Development, Parks & Recreation, Transportation and Land Use.

Ms. Merrill said maintenance issues will be part of the final design. There are maintenance items in the Master Plan. There needs to be a Key Contact List created and made available to the public. Trees will be put into Public Works Asset Management Plan. They may be able to include wi-fi and cameras. City Code Enforcement will restart commercial inspections. The Planning and Development Department is now fully staffed with two building inspectors.

Mr. Morris said the Dispatch equipment is 19 years old and is past its useful life. Parts are not available. It is time to replace that equipment. The cost is \$800,000-\$1 million. There have been discussions with Newport for a regional dispatch. They are also looking to replace their equipment. If the two communities come together, the City could possibly save up to \$500,000 on equipment. There is hope to pick up new customers to share the costs. Mr. Morris noted that Claremont cannot wait too much longer to replace its equipment, so if discussions of the regional dispatch fall through, the City will need the \$1 million for the equipment. Interest rates are historically low now, so this is a really good time to purchase this equipment.

Mr. Morris gave a bond overview. The total amount is \$5.8 million: \$4.8 million for Pleasant Street and \$1 million for dispatch. There is a little bit of contingency, under 5% for Pleasant Street. If not used for the project, it can be used to buy down the bond. The bond term is 20 years and the interest rate is 1.67%, which is historically low.

The annual General Fund payment is expected to be \$302,010 per year, based on the 1.67%. The Debt Service that is being retired is \$340,000, which is a slight 2-3 cent decrease. \$23,700 would be on the Water Fund. \$17,800 on the Sewer Fund. Total bond payment would be \$343,500.10 which is slightly above the bond payment that is being retired. Why now? Construction prices are lower. This will continue the revitalization momentum in the downtown area. It sets the stage for growth and recovery coming out of the pandemic.

Councilors asked clarifying questions.

Regarding the truck route, Mr. Colburn said this hasn't gone to NHDOT, yet. Ms. Merrill said NHDOT is aware that the City is working on this.

Regarding the regional dispatch center, Mr. Morris said the initial talks have been to create a stand-alone unit that is board managed. Costs will be shared. Details haven't been worked out. Mary Walter, Finance Director, said the City has a capital reserve for the Water and Sewer portions.

Mr. Koloski asked for a maintenance plan. He also asked for a Council walk through of the project area prior to voting on the bond.

There was a discussion about the regional dispatch center, including location, management, and that current dispatch personnel are part of a collective bargaining agreement. These items will need to be worked through. Mr. Morris said that both, the City of Claremont and the Town of Newport will have to be involved in this process.

Mr. Morris said there will be two separate bond votes at the August 26th Council meeting.

Mayor Lovett said there will be more specifics about maintenance at the August 26th meeting. Mr. Morris said he can talk to Councilor Koloski about maintenance. Part of the Master Plan is to have a place for public to call to report maintenance problems. It will be a part of a plan that addresses issues City-wide.

NEW BUSINESS

Kurt Beek Memorial Garden

The proposal is to create a pollinator garden and a bench next to the Visitors Center in memory of Kurt Beek.

Mr. Morris said the Conservation Commission has proposed to make a pollinator garden. Planning and Development Department has proposed putting the garden outside the Visitors Center Green.

Ms. Merrill said that Kurt Beek was a friend and colleague. He was a 13-year employee, and as the Project Manager of the City, his work is everywhere, including the CSBCC, Water Street, Parking Garage, etc. The proposed area is the hillside next to the Visitors Center building, which is hard to mow. To name this will require a public hearing, so this will come back at the next meeting. The bulbs have to be planted in September and money needs to be raised for that. The significance of the pelican is that Kurt loved pelicans. She said a lot of times people walking up the stairs will stop half-way to rest, so that is a good place to put a bench.

29 Water Street Deed Amendment

Mr. Morris said the City is looking for a vote on the deed amendment and consensus on parking. RSA 79-E has been noticed for the next meeting as a public hearing.

Ms. Merrill said the next four items pertain to 29 Water Street, Peterson Mill.

Eric Chinburg, Chinburg Properties, said the intention is to convert this mill into market rate apartments. What has been done in Claremont is remarkable. He would love to be a part of it. The intention is to maintain this as apartments, long term, with no commercial spaces.

Regarding the RSA 79-E tax relief period if granted by the Council, Ms. Merrill said the property can be sold, but the covenant stays throughout the entire approved period.

A motion was made by Councilor Koloski and seconded by Councilor Matteau to authorize the city manager, or his designees, to take such actions as may be necessary to amend a certain Quitclaim Deed, dated May 11, 2006, and recorded in the Sullivan County Registry of Deeds at Vol. 1582, Page 008, by which the City conveyed certain property located at 29 Water Street, known as the Peterson Building (Monadnock Mill No. 3), to Sugar River Mills Redevelopment, LLC. Such amendment is to modify the deed by deleting a Covenant that use of the property shall be restricted to ownership housing, commercial or mixed commercial/residential uses.

Mayor Lovett asked to change the last sentence “**Such amendment is to modify the deed by deleting a Covenant that use of the property shall be restricted to ownership housing, commercial or mixed commercial/residential uses.**” To read, “**Such amendment is to modify the deed by deleting only the Covenant that use of the property shall be restricted to ownership housing, commercial or mixed commercial/residential uses.**”

Ms. Merrill said if approved, this motion would be recorded and would be a permanent change to the deed. Councilors were okay with that.

Councilors Koloski and Matteau agreed with the modification to the motion.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

29 Water Street Easement

Ms. Merrill said that originally, all three of the buildings in that area were approved as one site plan. There was a 20-foot easement included on the easterly side of the Peterson Mill. There was also an easement added to the westerly side of the Wainshal Mill, where the walkway is. The development team would like to have an easement over the remaining City-owned lot, so they could have some enhancements to their building.

Mr. Chinburg said they are not seeking a specific easement tonight. He understands the Fire Department has concerns about access to that area. He has spoken to Red River and Alex Ray and they are in favor of the enhancements; there would be no impact on life safety issues. He was looking for consensus whether or not the Council was open to this knowing he would come back to Council later on. There was unanimous consensus of the Council to move forward.

29 Water Street Parking

Ms. Merrill said they are not looking for a vote on this tonight. They may need 10-36 more spaces than they currently have in the Parking Garage. They are thinking of looking for spaces outside the Garage, possibly using shared spaces. There was consensus of the Council to move forward with this. Ms. Merrill said the number of public spaces in the Parking Garage will stay the same. They will look for parking on surface lots.

Application for Community Revitalization Tax Relief Program (RSA 79-E) – 29 Water Street

Ms. Merrill said when Claremont adopted the RSA 79-E resolution, the tax relief was for up to five years with the ability to look at an additional four years for historic rehabilitation. The Council has not adopted the additional two years for residential. This request is for eleven years, and if the Council wants to do that, there would have to be an amendment to the resolution for the additional two years. Ms. Merrill said the 79-E properties do pay taxes on the pre-renovation value. The 79-E program is available in the City Center for single family residential, duplex, multi-family, and commercial properties where someone is making a substantial investment. She said the Ink Factory was approved for 5 years plus 1; Union & Main was approved for 5 years, but they opted not to go with the covenant; Goddard Block was approved for 5 years for 36 housing units. This project is for 80-90 market rate units.

Mr. Chinburg said the construction costs are the same in Claremont as they are in Boston, Portland, or Portsmouth, however, the markets are different for rents. This project will not be feasible without the 79-E. He said the property taxes for the building are about \$45,000 a year. To make the apartments affordable, they will be smaller than traditional apartments; there will be common areas available to the tenants. They expect very few school children living in these apartments, because they are small.

Regarding the assessment of the building, Steve Hamilton, Interim Assessor, said the assessed value is accurate at this time.

Mr. Chinburg said the studio apartments are about 500 square feet, and the average apartment is about 650 square feet. They will supplement with outdoor space, fitness rooms, and party rooms in the building. The demographics will be millennials; those that commute to DHMC; Red River; empty nesters and anyone in between. They plan to make the rooftop a place to hang out and enjoy the view of the river.

The change to the resolution will go on the next agenda.

Junior Sports League

Ms. Merrill said we've tried to bid this out before. There were citizens interested in the building right before COVID-19 hit, but she thinks the plan would be hard to accomplish with the cost of needed repairs. In the meantime, there has been a request for purchase. This is to ask the Council to put the Junior Sports League (JSL) building out for bid again.

A motion was made by Councilor Koloski and seconded by Councilor Stone to authorize the City Manager or his designee to post a Request for Proposals for sale of the Junior Sports League building to entertain these or any other offers that might be received.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-8 to Accept and Expend \$125,000 COPS Grant from Dept. of Justice –
Public Hearing

WHEREAS the City of Claremont, New Hampshire has been awarded a United States Department of Justice Community Oriented Policing Services (COPS) Grant in the amount of \$125,000.00 for a three year period to hire and train a police officer for the Claremont Police Department as part of the COPS Hiring Program with the understanding that the City of Claremont shall keep and fund said officer's position for a 4th year; and

WHEREAS the City would like to accept and expend the COPS grant funds for their intended purpose; and

WHEREAS the local cash match of \$110,146.00 has already been encumbered (to have no impact on the tax rate);

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept a grant in the amount of \$125,000.00 from the United States Department of Justice for the purpose of hiring and training of said police officer for the Claremont Police Department; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$125,000.00 for the Police Department (from off-setting grant revenue) for the purpose of hiring and training of said police officer for the Claremont Police Department; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Police Chief Mark Chase said the COPS (Community Oriented Policing Services) grant is a Department of Justice program. He gave a brief history. The City of Claremont is very busy. This request is focused on having an additional police officer that would be used in motor vehicle enforcement. He encumbered \$111,000 from last year's budget to be used if this grant is approved. If approved, the City will agree to fund the officer for a fourth year, which is not budgeted.

Mayor Lovett estimated the salary and benefits of \$78,000 for the fourth year. Chief Chase said he understands he will have to work to get this funded.

A motion was made by Councilor Contois and seconded by Councilor Koloski to adopt Resolution 2021-8 to Accept and Expend \$125,000 COPS Grant from the Department of Justice.

Councilor Contois read the resolution into the record.

Chief Chase will work with Mr. Morris regarding funding for the fourth year. Mayor Lovett asked Mr. Morris for the budget to have a list of items that this Council has approved that requires future funding.

Mayor Lovett opened the public hearing.

Walt Stapleton, Ward 3, said this is a great opportunity to bolster the Police Department. He asked the Council to vote in favor of this request.

Mayor Lovett closed the public hearing.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Sullivan House PILOT Agreement

Mr. Morris said he has been working with the County on the “sober” house and the County has agreed to pay Claremont \$12,000 a year as a PILOT (Payment in Lieu of Taxes). This is to keep the City whole. The County is a nontaxable entity. The Council does not need to approve this. This is nonbinding.

Sweetwater Hydro PILOT Agreement – Public Hearing

Mr. Hamilton said there are PILOT agreements that are authorized in statute for renewable energy projects. One of the provisions in the law is that when that kind of agreement is offered to one property within a community, then a similar type of agreement has to be offered for all others that qualify. This agreement mirrors basic provisions of an existing agreement (Sugar River Power). This one and the next one on the agenda are for seven years and ends on the same year. These types of agreements express support for renewable energy. They also provide the owners of the properties predictable tax burdens. All three properties were in states of disrepair when purchased by current owners and significant work has been put into the properties to return them to a generating capacity.

Mayor Lovett opened the public hearing.

Walt Stapleton, Ward 3, said this is a great opportunity to utilize an infrastructure that would otherwise deteriorate.

Mayor Lovett closed the public hearing.

A motion was made by Assistant Mayor Damren and seconded by Councilor Kier that the Claremont City Council, pursuant to RSA 72:74 and after public hearing duly noticed, approves the proposed Payment in Lieu of Tax Agreement (PILOT) between the City and Sweetwater Hydroelectric, LLC for a hydroelectric facility located on Plains Road and identified in the City's records as Map 69 Lot 63 (the Property), and further authorizes the City Manager or his designees to take all such actions as may be necessary to execute said PILOT and implement this motion in accordance with state law and regulation.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Lower Valley PILOT Agreement – Public Hearing

Mr. Hamilton said there was nothing else to add.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

A motion was made by Councilor Contois and seconded by Assistant Mayor Damren to that the Claremont City Council, pursuant to RSA 72:74 and after public hearing duly noticed, approves the proposed Payment in Lieu of Tax Agreement (PILOT) between the City and Sugar River Power, LLC for a hydroelectric facility located on Factory Street and identified in the City's records as Map 119 Lot 364 (the Property), and further authorizes the City Manager or his designees to take all such actions as may be necessary to execute said PILOT and implement this motion in accordance with state law and regulation.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-7 Establish Capital Reserve for Construction, Reconstruction, or Acquisition of City-Owned Facilities as Specified in the CIP – Public Hearing

WHEREAS the Council is presented with a Capital Improvement Plan (CIP) prepared by City staff and approved by the Claremont Planning Board each year; and

WHEREAS the Council has voted to accept the most recent CIP in a duly authorized meeting of the Council dated 5/17/2020; and

WHEREAS the Council wishes, upon recommendation of the Planning Board, to establish said Capital Reserve Fund and initially fund same by transferring surplus funds from the City's general and unassigned fund balance (existing upon the conclusion of the City's fiscal year as of June 30, 2020) into this Fund pursuant to RSA 34:3 and within the limitations set forth in RSA 34:4; and

NOW THEREFORE BE IT RESOLVED that, pursuant to RSA 34, the Council hereby establishes a Capital Reserve Fund for the Construction, Reconstruction or Acquisition of City-owned Facilities by and through a majority vote in the affirmative for this Resolution; and

BE IT FURTHER RESOLVED that the Council has authorized, pursuant to a three-fourths majority vote in the affirmative, for the transfer of \$100,000, such amount being less than one-half of the City's unencumbered surplus funds remaining on hand at the end of the fiscal year (June 30, 2020), subject to limits as provided in RSA 34:4, to the Construction, Reconstruction or Acquisition of City-owned Facilities Capital Reserve Fund; and

BE IT FURTHER RESOLVED that the City Manager shall serve as the Agent for the City, in accordance with RSA 34:10, and may only expend from the Construction, Reconstruction or Acquisition of City-owned Facilities Capital Reserve Fund for purposes that are directly associated with the expressed intent of this Capital Reserve Fund found both within this Resolution as well as the City's CIP. The City Manager's authority as Agent for the City shall be for an indefinite period and shall only cease upon an affirmative vote of the Council to appoint a new Agent for the City concerning this particular Capital Reserve Fund; and

BE IT FURTHER RESOLVED that a certified copy of the Council's vote authorizing the transfer of funds from the accumulated surplus in the City's general fund shall be immediately provided to the City Treasurer, by the City Clerk, whereupon the receipt of such record by the Treasurer will cause the transfer of these funds to the City's Trustees of Trust Funds for investment and preservation until the need arises for the expenditure of same.

Assistant Mayor Damren said when the CIP (Capital Improvements Plan) was presented for Council acceptance, the Planning Board Chair strongly urged establishing a capital reserve fund to be dedicated to the work that is being recommended in the CIP. This resolution does not mandate anything going forward, however the Finance Committee believes it is in the City's best interest to put funds into the capital reserve each year.

Assistant Mayor Damren said that in the first "Be it Further Resolved," it is recommended to delete "not more than"

Mayor Lovett suggested in the third "Whereas the Council," to add "upon suggestion of the Planning Board" as it recognizes the work of the Planning Board.

Councilor O'Hearne said he would like to see a clean resolution, otherwise he will vote no.

Mr. Morris said the City has many reserve funds, but none for CIP.

Assistant Mayor Damren read the resolution into the record.

A motion was made by Assistant Mayor Damren and seconded by Councilor Kier to adopt Resolution 2021-7 Establish Capital Reserve for Construction, Reconstruction, or Acquisition of City-Owned Facilities as Specified in the CIP.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 7-2.

Censure Discussion

A motion was made by Councilor Kier and seconded by Councilor Koloski to take from the table the Censure Discussion.

Roll call vote:

O'Hearne - no

Kier - yes

Sweetser - yes

Damren - no

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 6-3.

Councilor Matteau said that when Councilors are elected, they don't give up their First Amendment rights. She said Councilor Stone has the right to say what he wants and if the residents in Ward 3 don't like what he said, they can vote for someone else.

Councilor Koloski said there is nothing in the Rules with “teeth” in it. If residents don’t agree with what Councilors have to say, they should vote for someone else. With no teeth, he’s not in favor of a censure.

Councilor Contois said a censure shows people that the Council stands for something, against hate. He said it is time for Councilor Stone to stop his hateful and discriminatory speech.

A motion was made by Councilor Contois that this Council move to censure Councilor Stone. There was no second. Motion failed.

Councilor Kier said that racism is real. Words have a huge consequence.

Councilor Stone asked to have the legal opinion read into the record.

Mayor Lovett said this discussion is about censure. Despite how much she disagrees with Councilor Stone’s postings on social media, if she thought censure would make this Council work more effectively together, she would do it.

There have been multiple legal opinions that censuring does not create an environment in which a governing body works effectively together. She said the proactive approach should be a commitment to good governance.

Sam Killay, Ward 3, said he was unhappy with what Mayor Lovett said. He said Councilor Stone appeared to be misleading the public. At the May 27 Council meeting, the Council talked about a mask resolution which was not a mandate. Councilor Stone was the only one who took it as a mandate. On May 28, Councilor Stone made a misrepresentation on Facebook about it.

Councilor Stone reminded the Council that Mr. Killay has said some things that are less than truthful.

Walt Stapleton, Ward 3, said he doesn’t believe Councilor Stone was posting in his official capacity. The Council is not the behavior police. He sees this censure as a waste of time.

Matt Mooshian, Ward 2, talked about the June 24th Council meeting where he spoke out against some harmful words that were used by a Councilor on Facebook and those posts were shared on other websites. By failing to hold a Councilor responsible for his actions, it seemingly gives the Councilor impunity. Slurs toward people does do negative things to them. Need to hold someone accountable for the words they are using. He asked the Councilors to be leaders. If they can’t censure him, then think about what they can do.

Rebecca MacKenzie, Ward 2, talked about things that are happening regarding racial justice. As leaders of the community she would appreciate there being some sort of direction. There needs to be established norms of care and concern for one another. She wants to encourage the Council to think carefully and stand for something in this area.

Mr. Morris read the last two paragraphs from an email from Attorney Shawn Tanguay, January 10, 2019.

As to the Code of Conduct, that document is really a “best practice” guide for councilors. Even if the Code of Conduct were updated to include standards for social media activities, a violation of same does not necessarily constitute grounds for removal. Again, the Council would need to establish a “for cause” basis that would be determined based upon the level of misconduct as set forth in Section 28 of the Charter. Possibly, the Code of Conduct could be a basis by which to pursue removal (again, depending upon the nature of the act), however, the Code cannot be relied upon solely as a means for determining if removal is proper. With that said, the Council certainly has the ability to censure a Councilor for behavior (while not egregious enough for removal) that may be detrimental to the public perception of the Council. So if the Council was dissatisfied with the conduct of this particular official in terms of his behavior towards a resident, the Council could issue a public censure which is tantamount to the proverbial “slap on the wrist” as it has no impact on that councilor being able to discharge his official duties or anything of that sort. Please note, this type of activity often creates hurt feelings and division amongst the councilors that may be more injurious to the operations of the Council than the issue being addressed. As such, I would strongly recommend that this process only be implemented when the situation is rather dire and that this is the only means by which to address a matter that may have repercussions for the City going forward.

Unfortunately, there are some things that are beyond the control and address of the Council. The conduct of a Councilor, in his personal capacity and exercising his first amendment rights, is likely beyond the scope of the Council’s authority. Even if the Council were to take a moderate approach such as with censure, the result of that would likely be more detrimental to the Council in the long run (as individuals often hold grudges and may try to exact some form of revenge at some point). In some cases, the conduct needs to be addressed by the voters of Claremont. If the conduct was not befitting a City Councilor then, the voters need to handle this by electing another candidate to replace this individual. To my thinking, the court of public opinion and accountability to this person’s constituency will be how this matter is eventually resolved.

A motion was made by Councilor O’Hearne and seconded by Councilor Matteau to move the question.

Roll call vote:
O’Hearne - yes
Kier - yes
Sweetser - yes
Damren - yes
Matteau - yes
Koloski - yes

Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

A motion was made by Councilor Contois and seconded by Councilor Kier to censure Councilor Stone for his Facebook comments regarding Black Lives Matter and for his comments falsifying what was said at the Council meeting.

Roll call vote:
O’Hearne - no
Kier - yes
Sweetser - no
Damren - no
Matteau - no
Koloski - yes
Contois - yes
Stone - no
Lovett - no
Motion failed 3-6.

Councilor Kier said she did not think Councilor Stone should vote on his own censure.
Councilor Stone said legal counsel had already said he could.

Councilor O’Hearne said that the motion failed and even without Councilor Stone’s vote, it would still fail.

Because of the lateness of the hour, Assistant Mayor Damren asked to put the Proposed Council Rules Changes on the next meeting or September meeting. Council concurred.

Proposed Council Rule Changes

Mayor Lovett proposed the following Council Rule changes:

1. **Consent Calendar:** The mayor, in collaboration with the city manager, may place items on the consent calendar that do not require a public hearing and are routinely approved by a large majority of the governing body. Examples of such items include, but are not limited to, appointments to boards, committees or commissions, the acceptance of gifts/donations, and annual review of various documents. Any member of the Council may, upon request under Agenda Changes, pull an item off the consent calendar. That item will then be placed under either Old or New Business as appropriate.
2. **Change to Rule #22 (Order of Business):** Should a consent calendar be adopted, the Order of Business would be amended to read:

1. Pledge of Allegiance
 2. Roll Call
 3. Agenda Changes
 4. Report of the Secretary
 5. Mayor's Notes
 6. City Manager's Report
 7. Citizen's Forum - Non agenda Items (Note: Citizens will be allowed to speak on agenda items when they are discussed by the City Council)
 8. Consent Calendar
 9. Old Business
 10. New Business
 11. Committee Reports
 12. Future Agenda Items and Directives
 13. Adjournment
-
3. Appointment of Councilors to Boards, Committees or Commissions: Appointments of Council members to boards, commissions or committees will occur in January via the nomination process at a Council meeting. Council members should indicate their desire to serve on a board, commission or committee NLT the first regularly scheduled meeting in January. After accepting all nominations for an appointment, the Mayor will ask for a vote for each member seeking the appointment. The individual with the highest number of votes shall be appointed for a one-year term. If, after successfully completing his/her one-year term, the Council member is seeking reappointment, he or she should be given preference.
 4. Citizen Letters: When the Council receives a citizen's request to enter a personal letter into the record, the letter will be attached to the minutes in its entirety. It will not be read into the record unless the citizen does so or has another citizen do so on his/her behalf. If the topic of the letter is not an agenda item, the citizen shall read the letter during citizen's forum. If the topic of the letter pertains to an agenda item, the citizen will read the letter at the time during which that agenda item is discussed.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

None

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 10:23 p.m., a motion was made by Councilor O’Hearne and seconded by Councilor Matteau to adjourn.

Roll call vote:

O’Hearne - yes

Kier - no

Sweetser - no

Damren - yes

Matteau - yes

Koloski - no

Contois - no

Stone - yes

Lovett - yes

Motion carried 5-4.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council